

26SMCV00052 26SMCV00052

County: los-angeles

Division: Civil Law and Motion

Department: I

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This is a demurrer to a cross complaint. In particular, the cross complainant is the person who hired the cross defendant, who contracted to be the general contractor. According to the cross complaint, Handcrafted (the cross defendant) stated that its people had skill and experience when in fact, they did not. Handcrafted alleges that this is no more than the tortification of contract; turning what is really a contract dispute into a fraud case. The court has some sympathy for the point. The promise is pretty generic. But it is enough. It is not just "we will do a good job," which is too vague to form a statement of fact upon which reasonable reliance can be had. It is a specific representation as to the skill levels and experience that could be brought to bear. That can be proven or not. If in fact the people on the job had appropriate relevant experience, the statement is probably true; if they were just licensed last week, then it is a false statement, and knowingly false when made to boot. The bottom line is that a demurrer is the wrong place to test this. Handcrafted also pleads the economic loss rule. That rule does not apply to bar fraud causes of action, although the rule may have a lot more bite in the construction context. But again, a demurrer is the wrong place to test it.

The demurrer is OVERRULED.

But this is without prejudice to a motion for summary judgment or adjudication. Handcrafted has 30 days to answer the complaint. The court will hold the CMC.